

COMMITTEE AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB3392 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Amendment submitted by: Amanda Clinton

Adopted: _____

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

PROPOSED OVERSIGHT
COMMITTEE SUBSTITUTE
FOR
HOUSE BILL NO. 3392

By: Clinton, Pogemiller,
Munson, Fugate, Provenzano,
Ransom, Hefner, Alonso-
Sandoval, Menz, Timmons,
Stewart and Dollens

PROPOSED OVERSIGHT COMMITTEE SUBSTITUTE

An Act relating to the Oklahoma Corporation
Commission; defining terms; requiring the use of
closed-loop cooling systems at certain facilities;
authorizing promulgation of certain rules; providing
for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified
in the Oklahoma Statutes as Section 180.14 of Title 17, unless there
is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Closed-loop cooling system" means a cooling system that
recirculates water or other coolant within a contained system and
does not rely upon once-through cooling or continuous withdrawal and

1 discharge of water from a natural water source, except for de
2 minimis make-up water necessary for system efficiency and safety;

3 2. "Large load customer" means a customer or group of
4 affiliated customers that:

5 a. is served by an electric utility subject to the
6 jurisdiction of the Oklahoma Corporation Commission,

7 b. has a single-site or aggregated load with a maximum
8 demand of fifty (50) megawatts or greater, or such
9 other threshold as may be established by rule of the
10 Commission,

11 c. is primarily engaged in one or more of the following
12 activities:

13 (1) operation of data centers, cloud computing
14 facilities, server farms, or digital asset
15 processing facilities,

16 (2) artificial intelligence, high-performance
17 computing, or large-scale information processing,
18 or

19 (3) advanced manufacturing, industrial processing, or
20 other operations requiring continuous or near-
21 continuous high electric demand; and

22 d. operates facilities under common ownership or control
23 that are reasonably expected to operate in a
24 coordinated manner or that collectively impose

1 comparable impacts on electric infrastructure or
2 rates. The term shall not include traditional
3 residential, small commercial, or standard industrial
4 customers unless such customers meet the demand
5 thresholds established in this section.

6 B. Any large load customer, as defined in this section, that is
7 constructed on or after the effective date of this act, shall
8 utilize a closed-loop cooling system for all data center, cloud
9 computing, industrial processing, or other high-demand facility
10 operations requiring process or mechanical cooling.

11 C. The Commission may promulgate rules necessary to implement
12 and enforce the provisions of this section.

13 SECTION 2. This act shall become effective November 1, 2026.

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15 60-2-16874 JBH 03/03/26
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